

Syllabus

primarily, on present exigencies. Enduring separation of powers principles guide our decision in this case. The President enjoys no immunity for his unofficial acts, and not everything the President does is official. The President is not above the law. But under our system of separated powers, the President may not be prosecuted for exercising his core constitutional powers, and he is entitled to at least presumptive immunity from prosecution for his official acts. That immunity applies equally to all occupants of the Oval Office. Pp. 641–642.

91 F. 4th 1173, vacated and remanded.

ROBERTS, C. J., delivered the opinion of the Court, in which THOMAS, ALITO, GORSUCH, and KAVANAUGH, JJ., joined in full, and in which BARRETT, J., joined except as to Part III–C. THOMAS, J., filed a concurring opinion, *post*, p. 643. BARRETT, J., filed an opinion concurring in part, *post*, p. 650. SOTOMAYOR, J., filed a dissenting opinion, in which KAGAN and JACKSON, JJ., joined, *post*, p. 657. JACKSON, J., filed a dissenting opinion, *post*, p. 686.

D. John Sauer argued the cause for petitioner. With him on the briefs were *William O. Scharf*, *Michael E. Talent*, *Kenneth C. Capps*, *John F. Lauro*, and *Gregory M. Singer*.

Michael R. Dreeben argued the cause for the United States. With him on the brief were *Jack L. Smith*, *J. P. Cooney*, and *James I. Pearce*.*

*Briefs of *amici curiae* urging reversal were filed for the State of Alabama et al. by *Steve Marshall*, Attorney General of Alabama, *Edmund G. LaCour, Jr.*, Solicitor General, *Robert M. Overing*, Deputy Solicitor General, and *Dylan Mauldin*, Assistant Solicitor General, and by the Attorneys General for their respective States as follows: *Ashley Moody* of Florida, *Raúl R. Labrador* of Idaho, *Theodore E. Rokita* of Indiana, *Brenna Bird* of Iowa, *Kris Kobach* of Kansas, *Liz Murrill* of Louisiana, *Lynn Fitch* of Mississippi, *Andrew Bailey* of Missouri, *Austin Knudsen* of Montana, *Michael T. Hilgers* of Nebraska, *Drew Wrigley* of North Dakota, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, *Marty J. Jackley* of South Dakota, *Ken Paxton* of Texas, *Sean D. Reyes* of Utah, and *Patrick Morrissey* of West Virginia; for the American Center for Law and Justice by *Jay Alan Sekulow*, *Jordan A. Sekulow*, *Stuart J. Roth*, *Andrew J. Ekonomou*, *Jane Serene Raskin*, *Walter M. Weber*, and *Benjamin P. Sisney*; for the Christian Family Coalition (CFC) Florida, Inc., by *Dennis Grossman*; for the Coolidge Reagan Foundation et al. by *Dan Backer*; for the Kansas Republican Party by *Craig L. Uhrich*; for the